

## Sarafraj v. Mandhyanchal Viduit Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 26 May 2017 · Writ-C No. 24138 of 2017 · **Writ disposed of; liberty to object to provisional assessment.**

### HEADNOTE

A writ challenging a provisional assessment notice for alleged theft of electricity is disposed of where the consumer has a statutory objection under Section 126(3) of the Electricity Act, 2003 read with clause 6.8(b) of the Electricity Supply Code, 2005; the petitioner is left to file that objection before the appropriate authority.

### FACTUAL SUMMARY

Sarafraj filed Writ-C No. 24138 of 2017 in the Allahabad High Court against Mandhyanchal Viduit Nigam Ltd. and another. He challenged a provisional assessment notice issued by the respondents on account of alleged theft of electricity, seeking to have the notice set aside in writ jurisdiction without first filing an objection before the assessing authority. Counsel for the petitioner was heard by the Division Bench on 26 May 2017.

### HOLDING-UNITS

#### INTERPLAY · EA2003::126(3)

objection to provisional assessment

#### HOLDING

A writ against a provisional assessment notice issued on alleged theft of electricity is not decided on merits when the consumer has a remedy of filing an objection under Section 126(3) of the Electricity Act, 2003 read with clause 6.8(b) of the Electricity Supply Code, 2005; the petition is disposed of with liberty to file that objection before the appropriate authority. ¶ 1

### PRINCIPLE TAGS

**clause-6.8-hearing-procedure-mandatory-before-uue-conclusion** A writ challenging a provisional assessment notice for alleged theft of electricity is disposed of where the consumer has a statutory objection under Section 126(3) of the Electricity Act, 2003 read with clause 6.8(b) of the Electricity Supply Code, 2005 ¶ 1

**s126-procedural-strictness-notice-and-hearing** A writ challenging a provisional assessment notice for alleged theft of electricity is disposed of where the consumer has a statutory objection under Section 126(3) of the Electricity Act, 2003 read with clause 6.8(b) of the Electricity Supply Code, 2005 ¶ 1

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — VALIDITY OF THE PROVISIONAL ASSESSMENT NOTICE FOR ALLEGED THEFT

Disposed of on the statutory objection; no finding on the notice. ¶ 1